

designata, i. e. a particular individual, but as a term of succession, so as to transmit the estate to the heir for the time being forever. If, therefore, land be devised to a trustee in trust for A. for life, and after his decease in trust for the person who shall then be his heir or heiress and his or her heirs, in this case A. takes a life estate only, and the heir or heiress takes the fee simple by purchase (*e*); and of course the rule does not apply, if the legal estate be vested in trustees for the life of A. *in trust* for him, and the *legal remainder* after the death of A. be limited to the heirs of A.'s body, for here, as the life estate and the remainder are of different qualities (viz., one equitable and the other legal), they cannot unite (*f*)).

[*111] * 5. **Trusts executed and trusts executory distinguished.** — We have said, that if technical words be employed, they must be taken in their legal and technical sense; but as to this a distinction must be drawn between trusts *executed*, and trusts that are only *executory*; for to trusts executed the position is strictly applicable, but in the case of trusts that are executory it must be received with considerable allowance.

A trust *executed* is where the limitations of the equitable interest are complete and final; in the *executory* trust, the limitations of the equitable interest are intended to serve merely as minutes or instructions for perfecting the settlement at some future period (*a*).

The two confounded by Lord Hardwicke in Bagshaw v. Spencer. — The distinction we are considering was very early established, and was recognized successively by Lord Cowper (*b*), Lord King (*c*), Lord Talbot (*d*), and by no one more frequently than by Lord Hardwicke himself (*e*):

(*e*) Greaves v. Simpson, 10 Jur. N. S. 609.

(*f*) Collier v. McBean, 34 Beav. 426.

(*a*) See Egerton v. Earl Brownlow, 4 H. L. Cases, 210; Tatham v. Vernon, 29 Beav. 604.

(*b*) Bale v. Coleman, 8 Vin. 267; Earl of Stamford v. Sir John Hobart, 3 B. P. C. 33.

(*c*) Papillon v. Voice, 2 P. W. 471.

(*d*) Lord Glenorchy v. Bosville, Cas. t. Talb. 3.

(*e*) Gower v. Grosvenor, Barnard, 62; Roberts v. Dixwell, 1 Atk. 607; Baskerville v. Baskerville, 2 Atk. 279; Marryat v. Townley, 1 Ves. 102; Read v. Snell, 2 Atk. 648; Woodhouse v. Hoskins, 3 Atk. 24.